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Case Name: *In the Matter of The Mary Terpko Trust, dated August 9, 1994*

Case No.: 20PR187903

The above-entitled actions came on for hearing before the Honorable Lori E. Pegg on August 5, 2026 at 10:00 a.m. in Department 13. The court now orders as follows:

INTRODUCTION

On August 9, 1994, Mary Terpko (“Mary”) executed the Mary Terpko Trust (“Mary’s Trust”).¹ The trust was amended several times but, as relevant to this order, Mary’s son, George Ronald Terpko (“George”) remained a beneficiary under the terms of the trust, as amended, at the time of Mary’s death in July 2018. Upon Mary’s death, George began to act as successor trustee.

In March 2020, Ryan Phillips (“Respondent”), George’s nephew, filed a successful petition to remove George as trustee of Mary’s Trust. The court ordered George removed and replaced him with Respondent as trustee. George passed away in July 2023 while the administration of Mary’s Trust was still pending. Respondent remains trustee of Mary’s Trust and no final distribution has been made to date.

On May 5, 2026, Susan Stanton (“Petitioner”), George’s daughter, who asserts that she is trustee of the George Terpko Trust (“George’s Trust”), filed a petition to compel Respondent to provide a probate accounting and to complete final distribution of Mary’s Trust (the “Petition”). Respondent opposed the petition on June 24, 2026² and Petitioner filed a reply on July 9, 2026. On July 10, 2026, when the petition came on for hearing, the Court set the petition for decision on the law and motion calendar and allowed further briefing from both Petitioner and Respondent. Respondent filed his supplemental brief on July 22, 2026 and Petitioner filed her supplemental brief on July 29, 2026.

DISCUSSION

Petitioner seeks a probate accounting under Probate Code section 16061, which provides, “Except as provided in Section 16069, on reasonable request by a beneficiary, the trustee shall report to the beneficiary by providing requested information to the beneficiary relating to the administration of the trust relevant to the beneficiary’s interest.” Petitioner also relies on Probate Code section 17200, which allows a beneficiary to petition the court for an order compelling a trustee to account where the trustee has failed to submit a requested information or account within 60 days after written request of the beneficiary and no account has been made within six months preceding the request. (Prob. Code, § 17200, subds. (a)&(b)(7).)

¹ Because several individuals involved in this case share the same last name, they will be referred to by their first names. No disrespect is intended.

² Respondent filed his original opposition on July 23, 2026 and a corrected opposition on July 24, 2026. The Court considers the corrected opposition.

Respondent's opposition to the Petition centers around his contention that Petitioner is not a beneficiary of the trust and therefore, lacks standing to seek an accounting or to compel final distribution.³ It is undisputed that Petitioner is not a named beneficiary of Mary's Trust in her own right. Petitioner contends that she is a beneficiary of Mary's Trust in her capacity as trustee of George's Trust and as George's successor in interest. Respondent, on the other hand, argues that George's right to his portion of Mary's Trust vested while he was alive and that his share passes to his estate. Because Petitioner is not the personal representative of the estate, he contends that she is not entitled to receive George's share of Mary's Trust.

At the outset, the Court notes that neither party has provided the Court with a copy of George's Trust instrument or a will for George. Estate proceedings were opened by Respondent for George in docket 23PR195685 but Respondent only sought and received letters of administration for the limited purpose of clearing title to two assets that he asserted were wrongfully taken by George from Mary's Trust when George held the position of trustee. No general personal representative was appointed and no will was probated.⁴ The failure to provide any estate planning documents whatsoever is fatal to Petitioner's claims. Without a copy of the trust instrument, the Court cannot determine if George's Trust could have any interest in George's share of Mary's Trust, nor can it determine if Petitioner is the successor of interest to George's share of Mary's Trust. Notably, a settlor may designate that only some of his property be placed in the trust. (See Prob. Code, § 15200 [methods for creating a trust, including a "declaration by the owner of property that the owner holds the property as trustee" or a "transfer of property by the owner during the owner's lifetime to another person as trustee"].) Property that is not placed in the trust is not a trust asset and, in the absence of further litigation (for example, a *Heggstad*⁵ petition) must be part of a decedent's estate unless it is a non-probate asset, such as a joint account.

Petitioner argues that George's share of Mary's Trust will pass through his trust pursuant to Probate Code sections 13100 and 850. Neither code section supports the view that property of George's estate automatically passes through his trust regardless of the terms of that trust or whether that property is trust property. Probate Code section 13100 makes no mention of trusts or trustees. (See Prob. Code, § 13100 [decedent's successor may, without letters of administration, collect money due the decedent, receive tangible personal property of the decedent, or transfer property of the decedent].) Probate Code section 850 generally allows certain specified persons to petition for an order that certain property belonged to a decedent or trust at the time of death; it does not apply automatically to convert property of an estate to trust property.

Petitioner contends that she is George's successor in interest pursuant to Code of Civil Procedure section 377.11.⁶ That section provides, "For the purposes of this chapter,

³ Finding this argument dispositive, the Court declines to address Respondent's remaining arguments.

⁴ Petitioner maintains that she does not believe George had a will.

⁵ *Estate of Heggstad* (1993) 16 Cal.App.4th 943.

⁶ All further undesignated statutory references are to the Code of Civil Procedure.

‘decendent’s successor in interest’ means the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (§ 377.11.) But, Petitioner provides no reasoned analysis as to how she is a successor in interest nor have the procedural steps required to substitute a successor interest into this action been filed.

Petitioner has not established that she is the beneficiary of George’s estate within the meaning of section 377.11. Section 377.10 provides,

For the purposes of this chapter, “beneficiary of the decedent’s estate” means:

- (a) If the decedent died leaving a will, the sole beneficiary or all of the beneficiaries who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under the decedent’s will.
- (b) If the decedent died without leaving a will, the sole person or all of the persons who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under Sections 6401 and 6402 of the Probate Code or, if the law of a sister state or foreign nation governs succession to the cause of action or particular item of property, under the law of the sister state or foreign nation.

Petitioner ignores this definition and instead relies on the definition stated in Probate Code section 24.⁷ But, because Petitioner claims to be a successor in interest under section 377.11, the definition contained in section 377.10 controls. As mentioned above, no estate planning documents for George have been provided to the Court. Petitioner states in her reply that she believes George did not leave a will.⁸ If George died without a will, it is undisputed that Petitioner is an intestate beneficiary of his estate. However, the statutory language quoted above requires that, to be “the” beneficiary of George’s estate entitled to succeed to causes of

⁷ That section provides,

“Beneficiary” means a person to whom a donative transfer of property is made or that person’s successor in interest, and:

- (a) As it relates to the intestate estate of a decedent, means an heir.
- (b) As it relates to the testate estate of a decedent, means a devisee.
- (c) As it relates to a trust, means a person who has any present or future interest, vested or contingent.
- (d) As it relates to a charitable trust, includes any person entitled to enforce the trust.

(Prob. Code, § 24.)

⁸ Petitioner’s reply also references a “Legal Zoom receipt” purportedly attached to Respondent’s “Response” and contends that it does not establish that George made a will. (See Reply to Response to Petition, p. 4:1-3.) The version of the opposition on file with the court does not include a Legal Zoom receipt. The sole exhibit consists of Respondent’s Probate Code section 850 petition filed in docket 23PR195685. The Probate Code section 850 petition does have exhibits attached, which are mostly illegible, but none appear to be a Legal Zoom receipt.

action George held at death, if George died intestate, Petitioner must be *the sole person or all of the persons* succeeding to particular item of property sought under the Petition, namely George's share of Mary's Trust. Notably, Petitioner has siblings, who would appear to also be intestate heirs. In the absence of any documents establishing that Petitioner is entitled to George's share of Mary's Trust, Petitioner cannot establish that she is the successor in interest. (See, generally, *Parsons v. Tickner* (1995) 31 Cal.App.4th 1513, 1522-1523 (*Parsons*) [plaintiff was entitled to 100 percent of uninventoried assets of estate and asset sought in action was an uninventoried asset, thus plaintiff was successor in interest for the purposes of that action].)

To the extent Petitioner relies on Probate Code section 13100, she has not established that she is George's successor for purposes of that statutory scheme either. Probate Code section 13006, provides

“Successor of the decedent” means:

(a) If the decedent died leaving a will, the sole beneficiary or all of the beneficiaries who succeeded to a particular item of property of the decedent under the decedent's will. For the purposes of this part, a trust is a beneficiary under the decedent's will if the trust succeeds to the particular item of property under the decedent's will.

(b) If the decedent died without a will, the sole person or all of the persons who succeeded to the particular item of property of the decedent under Sections 6401 and 6402 or, if the law of a sister state or foreign nation governs succession to the particular item of property, under the law of the sister state or foreign nation.

(Prob. Code, § 13006.) Thus, as with section 377.10, the successor is either the only person or all of the persons entitled to succeed to the particular item of property of decedent. In other words, the status as successor in interest depends on the successor's right to succeed to particular property, in this case, George's share of Mary's Trust. Here, again, Petitioner has not established that she is George's sole intestate heir, that George's Trust names her the sole beneficiary or the beneficiary of George's share of Mary's Trust, or that George's share of Mary's Trust is an asset of George's Trust. Thus, she has not established that she is George's successor in interest under either section 377.10 or Probate Code section 13006. Merely being one of multiple beneficiaries of George's estate under Probate Code section 24 is not sufficient.

Moreover, to the extent Petitioner contends she is the successor in interest solely due to her position as trustee of George's trust, she has not established that George's Trust is a beneficiary of Mary's Trust. George's Trust is not a named beneficiary of Mary's Trust and Petitioner has not provided a copy of George's Trust instrument or even any argument regarding how George's Trust is entitled to George's share of Mary's Trust. Thus, she has not established that George's Trust is entitled to pursue a cause of action for an accounting or distribution of Mary's Trust's assets. In other words, Petitioner has failed to show that the trustee of George's Trust is George's successor in interest for the purposes of the claims raised in the Petition.

Finally, assuming that George's Trust instrument indicates that George's share of Mary's Trust or the entirety of George's estate is trust property, and that Petitioner is a beneficiary entitled to that property, Petitioner has not complied with the procedural requirements to continue or commence an action as a successor in interest. In the Court's view,

it is not entirely clear whether the authorities applicable to commencing a proceeding or continuing a proceeding would apply due to the unique nature of probate proceedings in this Court, whereby multiple petitions may be filed under the same docket number. Here, George was a party to this case prior to his death but the Petition itself, which was filed by Petitioner, was filed after his death in the same case. “A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (§ 377.30.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (§ 377.31.)

In either event, Petitioner has not complied with the statutory requirements to continue or commence an action. Petitioner has not filed the declaration required by section 377.32, which is required to either continue or commence an action.⁹ And, if the proceedings are considered continued proceedings, Petitioner has not made a motion to continue the action as George’s successor in interest. (§ 377.31.)

As Petitioner has not established that she is either George’s personal representative or his successor in interest, she has not established that she has standing to pursue the claims raised in the Petition.

CONCLUSION

The Petition is DENIED.

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⁹ The Court is aware of cases indicating that compliance with section 377.32 is not a prerequisite to commencing or continuing an action. (See *Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 614 (*Aghaian*); *Parsons, supra*, 31 Cal.App.4th at pp. 1523-1524.) But, in *Aghaian*, the plaintiffs simply filed their section 377.32 “well after” commencing the action and in *Parsons*, the Court of Appeal reversed an order sustaining demurrer, allowing for continuing proceedings in the trial court and the plaintiff indicated that she would file the required declaration. (See *Aghaian, supra*, at p. 614; *Parsons, supra*, at p. 1533, fn. 4.) Thus, neither court addressed a situation wherein the required declaration was never filed before the ultimate determination of the proceeding at issue, as in this case.

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